



Judges' Remuneration Act 1965

1965 CHAPTER 61

An Act to increase the salaries attached to certain high judicial offices; to increase the rate of the Lord Chancellor's pension; to provide for the appointment of additional judges of the High Court in England; and for connected purposes. [5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) There shall be paid to the holder of any judicial office listed in Schedule 1 to this Act a salary at the annual rate specified in relation to that office in the second column of that Schedule. ^{Increased salaries of judges.}

(2) Her Majesty may at any time by Order in Council direct that any of the salaries to which the foregoing subsection applies shall be increased to such amount as may be specified in the Order.

(3) No recommendation shall be made to Her Majesty in Council to make an Order under this section unless a draft of the Order has been laid before Parliament and approved by resolution of each House of Parliament.

(4) Any Order under this section—

- (a) may contain such transitional, supplementary and incidental provisions as may appear to Her Majesty to be necessary or expedient for the purposes of the Order; and
- (b) may be revoked or varied by a subsequent Order under this section, but not so as to reduce the amount of any salary payable immediately before the making of the subsequent Order.

Lord
Chancellor's
salary and
pension.

1832 c. 111.

2.—(1) There shall be paid to the Lord Chancellor a salary at such rate as together with the salary payable to him as Speaker of the House of Lords will amount to £14,500 a year.

(2) The annual amount of any pension granted under the Lord Chancellor's Pension Act 1832 for service as Lord Chancellor shall in the case of a person who resigned that office after the commencement of this Act be £6,250 instead of £5,000 and any Letters Patent issued under that Act before the commencement of this Act shall have effect accordingly.

Additional
judges of
High Court
in England.

3. The maximum number of puisne judges of the High Court in England shall be increased from fifty-six to sixty-three.

Supplementary
provisions.

4.—(1) There shall be charged on and paid out of the Consolidated Fund of the United Kingdom—

(a) the salaries payable under sections 1 and 2(1) of this Act; and

(b) any increase attributable to this Act in the sums payable out of that Fund under any other enactment.

(2) The salary payable to any person under section 1 or section 2(1) of this Act shall in each case be abated by the amount of any pension payable to him in respect of any public office in the United Kingdom or elsewhere to which he had previously been appointed or elected.

(3) The amount of the annual salary of the holder of any judicial office listed in Schedule 1 to this Act shall, notwithstanding that the salary is abated by reason of the last foregoing subsection, be treated for the purpose of computing the pension payable to him in respect of that office and any derivative benefit within the meaning of the Administration of Justice (Pensions) Act 1950 which depends upon eligibility for such a pension as the amount prescribed by or under section 1 of this Act and not the amount as so abated.

1950 c. 11
(14 & 15
Geo. 6).

Short title,
consequential
amendments,
repeals and
commence-
ment.

5.—(1) This Act may be cited as the Judges' Remuneration Act 1965.

(2) The enactments described in Schedule 2 to this Act shall have effect subject to the amendments set out in that Schedule, being amendments consequential on the foregoing provisions of this Act.

(3) The enactments described in Schedule 3 to this Act (which includes enactments which have become obsolete or unnecessary) are hereby repealed to the extent specified in the third column of that Schedule.

(4) This Act, except so far as relating to the number of judges of the High Court in England, shall come into force on 1st April 1966; and any reference in any provision of this Act to the commencement of this Act shall be construed as a reference to the day on which that provision comes into operation.

Section 1.

SCHEDULES

SCHEDULE 1

JUDICIAL SALARIES

<i>Judicial Office</i>						<i>Salary £</i>
Lord of Appeal in Ordinary	...	...	...	...	...	11,250
Lord Chief Justice	...	...	...	...	...	12,500
Master of the Rolls	...	...	...	...	...	11,250
President of the Probate, Divorce and Admiralty Division	...	...	...	...	...	11,250
Lord Justice of Appeal	...	...	...	...	...	10,000
Puisne Judge of the High Court of Justice	...	...	...	...	...	10,000
Lord President of the Court of Session	...	...	...	...	...	10,000
Lord Justice Clerk	...	...	...	...	...	9,750
Ordinary Judge of the Court of Session	...	...	...	...	...	8,250
Lord Chief Justice of Northern Ireland	...	...	...	...	...	9,375
Lord Justice of Appeal in Northern Ireland	...	...	...	...	...	8,125
Puisne Judge of the High Court of Justice in Northern Ireland	...	...	...	...	...	8,125

Section 5(2).

SCHEDULE 2

CONSEQUENTIAL AMENDMENTS

The Lord Chancellor's Pension Act 1832
(2 & 3 Will. 4. c. 111)

1959 c. 9
(8 & 9 Eliz. 2). In section 3, so far as it relates to a pension for service as Lord Chancellor of a person resigning that office after the commencement of this Act, for the words "five thousand pounds" in both places where they occur (being words restored by Schedule 3 to the Judicial Pensions Act 1959) there shall be substituted the words "six thousand two hundred and fifty pounds".

The Supreme Court of Judicature (Consolidation Act) 1925
(15 & 16 Geo. 5. c. 49)

In section 2(1), for the words from "not less" to the end of the subsection there shall be substituted the words "not less than twenty-five nor more than sixty-three puisne judges of that Court".

The Supreme Court of Judicature (Amendment) Act 1944
(7 & 8 Geo. 6. c. 9)

1962 c. 15. In section 1(2), for the words "fifty-three" (being words substituted by Schedule 4 to the Criminal Justice Administration Act 1962) there shall be substituted the words "sixty-three".

SCHEDULE 3

Section 5(3).

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
17 & 18 Vict. c. 94.	The Public Revenue and Consolidated Fund Charges Act 1854.	In Schedule (A), the words "Salaries of the Lord President of the Court of Session, the Lord Justice Clerk, and the other judges of the Court of Session."
35 & 36 Vict. c. 51.	The Judges Salaries Act 1872.	In section 4, the words from "every" where it first occurs to "Scotland, and".
39 & 40 Vict. c. 59.	The Appellate Jurisdiction Act 1876.	In section 6, the words "There shall be paid to every Lord of Appeal in Ordinary a salary of six thousand pounds a year". In section 7, the words "salary and". In section 14, in the paragraph beginning with the words "Any Lord", the words "salary and".
40 & 41 Vict. c. 57.	The Supreme Court of Judicature Act (Ireland) 1877.	In section 18, the words from the beginning to "three thousand five hundred pounds a year". In section 20, the word "salaries" in the first place where it occurs, and the words "salaries and".
50 & 51 Vict. c. 35.	The Criminal Procedure (Scotland) Act 1887.	Section 45.
3 & 4 Geo. 5. c. 21.	The Appellate Jurisdiction Act 1913.	In section 1, the word "salary", and the proviso.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	Section 13. In section 15, the words "salaries and".
16 & 17 Geo. 5. c. 44.	The Supreme Court of Judicature of Northern Ireland Act 1926.	Section 1(1).
19 & 20 Geo. 5. c. 8.	The Appellate Jurisdiction Act 1929.	In section 2, the word "salary".
12, 13 & 14 Geo. 6. c. 10.	The Administration of Justice (Scotland) Act 1948.	In section 1(2), the words from "the sums" to "1854, and".

SCH. 3

Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 6. and 1 Eliz. 2. c. 12.	The Judicial Offices (Salaries, etc.) Act 1952.	Section 4(1).
2 & 3 Eliz. 2. c. 27.	The Judges' Remuneration Act 1954.	Section 1(1).
8 & 9 Eliz. 2. c. 9.	The Judicial Pensions Act 1959.	Section 5, so far as it relates to a pension for service as Lord Chancellor of a person who resigns that office after the commencement of this Act.
10 & 11 Eliz. 2. c. 15, 1925 c. 49. 1944 c. 9.	The Criminal Justice Administration Act 1962.	Section 1. In Schedule 4, the amendments of the Supreme Court of Judicature (Consolidation) Act 1925 and of the Supreme Court of Judicature (Amendment) Act 1944.
1964 c. 58.	The Resale Prices Act 1964.	Section 9(1).